

Court No. - 4

Case :- WRIT - C No. - 6303 of 2022

Petitioner :- Jitendra Kumar

Respondent :- State Of U.P. Thru.Secy. Energy U.P. And 5 Others

Counsel for Petitioner :- Anil Kumar Singh

Counsel for Respondent :- C.S.C.,Amit Sharma

Hon'ble Attau Rahman Masoodi,J.

Hon'ble Om Prakash Shukla,J.

Heard learned counsel for the petitioner and Sri Amit Sharma, learned counsel appearing for opposite parties no. 4 to 6.

A provisional assessment notice was issued to the petitioner on 7.4.2021 by opposite party no. 4 for a sum of Rs. 34,794/- as electricity dues. The petitioner was asked to submit his reply on or before 24.4.2021. According to the petitioner, a reply was submitted by him on 15.4.2021 as contained in Annexure-6 to the writ petition. The petitioner in his reply has specifically put up a stand that he has already got his electricity connection disconnected permanently on 20.7.2015 where he was earlier residing in village and notice was served to him for that premises, and he shifted alongwith his family in city Hardoi. The petitioner has also disputed indulgence into theft of electricity in any manner. The petitioner, thus, has prayed that the notice dated 7.4.2021 may be withdrawn.

Sri Amit Sharma, learned counsel appearing for opposite party nos. 4 to 6 has submitted that it was mandatory on the part of the petitioner to respond against the provisional assessment notice dated 7.4.2021 for recovery proceedings, which have come to be initiated against the petitioner for the assessment made.

On a pointed query of the Court as to whether the authorities of Power Corporation have lodged any criminal proceedings against the petitioner or not, it was replied that no such proceedings were initiated against the petitioner.

Learned counsel for the Power Corporation has also not been able to say that any decision in the light of reply filed by the petitioner as contained in Annexure-6 to the writ petition, has been taken as yet. In a case of theft of electricity, the Power Corporation is free to proceed against such consumers both by initiating criminal as well as civil proceedings, but in the present case criminal proceedings were not initiated against the

petitioner. In any case, once the notice under Section 126 of Electricity Supply Code, 2005 (4th Amendment) was issued against the petitioner for a sum of Rs. 34,794/-, and a reply in response thereto is stated to have been filed on 15.4.2021 by the petitioner, the same ought to have been considered without which recovery proceedings will fail.

In the circumstances of the case, we hereby direct the opposite party no. 5 to consider petitioner's objection contained as Annexure-6 to the writ petition as expeditiously in accordance with law as well as any objection which may additionally be filed by him within a period of four weeks from today. This exercise shall be completed by opposite party no. 5 within a period of two months from the date of production of a copy of this order alongwith the representation dated 15.4.2021 as well as the additional objection. In the meantime, provisional assessment notice issued to the petitioner on 7.4.2021 by opposite party no. 4 for a sum of Rs. 34,794/- as electricity dues shall remain in abeyance and shall be abide by the outcome of the objection raised by the petitioner.

With the aforesaid directions, the writ petition is disposed of.

Order Date :- 20.9.2022
SKS